

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

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PROBATE LAW AND MOTION TENTATIVE RULINGS

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Case Name: Conservatorship of Ligia Oceguela

Case No.: 21PR190362

INTRODUCTION

Ligia Irazema Oceguela Garcia (“Conservatee”) was severely injured in an accident and rendered incapacitated. In 2021, her husband Cesar Oceguela Varela (“Petitioner”) petitioned to be named her conservator and the Santa Clara County Superior Court issued an order granting that petition. Thereafter, Conservatee and Petitioner accepted a settlement of litigation stemming from Conservatee’s injuries. The settlement was approved by a court in Nevada. The Nevada court also ordered that Petitioner could set up a special needs trust for Conservatee with the proceeds of the settlement. On April 14, 2026, Petitioner filed a petition for substituted judgment in this court seeking to establish the special needs trust.

Currently before the court is Petitioner’s motion to file all documents relating to his petition for substituted judgment under seal. No opposition has been filed.

DISCUSSION

I. Legal Background

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c).) However, “[t]he rules [Cal. Rules of Court, rule 2.550 and 2.551] ‘recognize the First Amendment right of access to documents used at trial or as a basis of adjudication.’ [Citation.]” (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 84 (*Mercury Interactive*)).

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d), formatting omitted.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute

overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*In re Providian*).)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (d)(5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*In re Providian, supra*, 96 Cal.App.4th at p. 309.)

“A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).)

II. Merits of the Motion

At the outset, the court notes that Petitioner’s motion is styled as a motion to file the entire action under seal. However, Petitioner clarifies that he is only seeking to seal documents relating to his petition for substitute judgment and not any documents previously filed under this docket number or any documents unrelated to the petition to be filed under this docket number in the future.

Petitioner contends that the documents must be filed under seal because they refer to a confidential settlement agreement approved by a Nevada court and the Nevada court has already ordered similar items sealed. Petitioner provides a copy of his motion to approve settlement agreement, which contained a request to seal. (See Declaration of Ian M. Sharon, Ex. A, p. 5.) In that motion, he requested that the court seal the motion itself and any related documents be sealed pursuant to rule 3 of the Nevada Rules for Sealing and Redacting Court Records (“SRCR”).¹ (*Id.* at Ex. A, p. 5.) The Nevada court granted the motion. (*Id.* at Ex. B.) But, the Nevada court’s order did not require that all items relating to the settlement agreement in any court be filed under seal and its order is not binding on this court. (See *Universal City Studios, supra*, 110 Cal.App.4th 1273, 1285 [sealing orders by other courts that did not purport to bind reviewing court did not require reviewing court to seal similar information].)

Nonetheless, Petitioner contends that the settlement agreement was confidential. A “contractual obligation not to disclose can constitute an overriding interest within the meaning of” rule 2.551. (*Universal City Studios, supra*, 110 Cal.App.4th at p. 1283 [discussing predecessor to rule 2.551].) For the purposes of the overriding interest requirement, the party moving to seal must not only identify an overriding interest but also establish a substantial probability that the interest will be prejudiced absent sealing. (*Ibid.*) Here, that requirement is met because the Nevada court ordered that the motion to approve settlement agreement and related documents be sealed. Moreover, Petitioner has appropriately filed the memorandum of

¹ That section provides, in pertinent part, The court may order the court files and records, or any part thereof, in a civil action to be sealed or redacted, provided the court makes and enters written findings that the specific sealing or redaction is justified by identified compelling privacy or safety interests that outweigh the public interest in access to the court record. The parties’ agreement alone does not constitute a sufficient basis for the court to seal or redact court records. The public interest in privacy or safety interests that outweigh the public interest in open court records include findings that: . . . The sealing or redaction is of the confidential terms of a settlement agreement of the parties[.]” (SRCR 3(4)(e).)

points and authorities in support of this motion and the petition for substituted judgment conditionally under seal. Accordingly, the court finds that there is an overriding interest in protecting the confidentiality of the settlement agreement, that interest supports sealing the record, and that there is a substantial likelihood of prejudice to the interest if sealing is not ordered.

As to the requirements that the proposed sealing be narrowly tailored and that no less restrictive means exist to protect the overriding interest, the court notes that Petitioner is asking to file both documents he has already submitted to the court and future documents under seal. He contends that the redactions are narrowly tailored because he is not seeking to seal documents unrelated to the petition for substituted judgment. The court rejects this argument. Taken to its logical conclusion, accepting Petitioner's argument would mean that he could file entire documents simply referring to the petition for substituted judgment under seal without the need for court examination of the documents. Because court records are presumptively open to the public and Rules of Court, rule 2.550(d) requires that the court make express factual findings, including that the proposed redactions are narrowly tailored, as to each record. (Cal. Rules of Court, rule 2.550(c) [court documents are presumptively public] & (d) ["The court may order that *a record* be filed under seal only if it expressly finds facts that establish: [required factual findings]."]

As to the documents that have been conditionally filed under seal, the court has examined them and finds the redactions narrowly tailored. In the future, however, the court will not consider a motion like this where petitioner has failed to explain in the memorandum what is redacted or why or how it meets the standard for sealing. Because the court cannot make such a determination as to documents that could be filed in the future, that request is denied. Accordingly, the motion to seal is GRANTED IN PART as to the petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026. To the extent Petitioner wishes to file any future documents under seal, he must make a separate noticed motion to do so.

CONCLUSION

The motion is GRANTED IN PART. The petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026 may be filed under seal. The motion is DENIED to the extent it seeks an order that future documents may be filed under seal.

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Case Name: THE DAVID B. COSTA LIVING TRUST, dated August 17, 2018
Case No.: 23PR194562 (lead case, consolidated with 25PR200738)

Case Name: THE ESTATE OF DAVID COSTA
Case No.: 25PR199269

INTRODUCTION

On April 19, 2023, the Public Guardian filed an ex parte petition for appointment of successor trustee to the David B. Costa Living Trust in docket 23PR194562. The ex parte petition asserted that David Costa (“Decedent”) was conserved and could not serve as the trustee. The court appointed Ryan Marshall Tanaka (“Respondent”) as successor trustee.

On August 12, 2025, after Decedent’s death, Jialing Wang (“Petitioner”), Decedent’s surviving spouse, filed a petition for accounting, to invalidate trust, to remove trustee, and for redress of breach of trust (“Petition”) related to the David B. Costa Living Trust. The Petition was assigned docket 25PR200738. Petitioner alleges that Respondent Tanaka and Philemon Hyunwok Kang (“Kang”), Decedent’s friends, committed elder abuse against both Decedent and Petitioner and unduly influenced Decedent to modify his trust.

On December 3, 2025, dockets 23PR194562 and 25PR200738 were consolidated with docket 23PR194562 designated as the lead case. On January 29, 2026, Petitioner filed an amended Petition in docket 23PR194562 (“Amended Petition”).

On February 19, 2025, in docket 25PR199269, Respondent filed a petition for probate of Decedent’s estate, asserting that Decedent died with a will and seeking appointment as personal administrator. Letters of administration issued on April 14, 2025. On November 20, 2025, Respondent filed a petition for orders (1) confirming trust property, (2) confirming breach of fiduciary duty, and (3) compelling accountings. On January 29, 2026, Petitioner filed an objection to the November 20, 2025 petition (“Objection”).

Currently before the court are Respondent’s demurrer and motion to strike targeting the Amended Petition in docket 23PR194562. Also before the court are Respondent’s demurrer and motion to strike targeting the Objection in docket 25PR199269. Petitioner has opposed all four motions. Respondent filed a reply to the opposition to the demurrer in docket 23PR194562 only. The court continued the hearing on all four motions from April 16, 2026 to May 28, 2026 so that they could be heard together with a demurrer and motion to strike filed by Kang.

Also before the court are a demurrer and motion to strike filed by Kang in docket 23PR194562 targeting the Amended Petition. The demurrer and motion to strike are unopposed.

DISCUSSION

Legal Background

A. Demurrer

A demurrer may be utilized by “[t]he party against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (Code Civ. Proc., §§ 430.10, 430.50, subd. (a).)¹ The court in ruling on a demurrer treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

B. Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (§ 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (§ 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (§ 437, subd. (a).) The court’s decision to strike the petition pursuant to section 436 is discretionary. (See § 436 [“The court may . . . strike”]; see also *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429 [motion to strike is addressed to the sound discretion of the court].) A motion to strike should be applied cautiously and sparingly because it is used to strike substantive defects. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Respondent’s Demurrer and Motion to Strike Amended Petition in Docket 23PR194562

A. Respondent’s Request for Judicial Notice

Respondent requested judicial notice of 17 items in support of both his demurrer and his motion to strike in docket 23PR194562. The request is GRANTED as to the court documents with the caveat that, while the court is free to take judicial notice of the existence of a document in a court file, it may not take judicial notice of the truth of hearsay statements contained therein. (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; Evid. Code, § 452, subd. (d).) The request is also GRANTED as to the recorded recission deed and the marriage license. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549 [“The court may take judicial notice of recorded deeds.”]; Evid. Code, § 452, subd. (c).) Finally, the court GRANTS judicial notice of Probate Code section 16061.8. (Evid. Code, § 452, subd. (a).)

¹ All further undesignated statutory references are to the Code of Civil Procedure.

B. Demurrer

Respondent demurs to each cause of action in the Amended Petition on the grounds that they each fail to state sufficient facts and that they are uncertain.

At the outset, the court notes that the Amended Petition is not separated into traditional causes of action; instead, it contains headings that sometimes appear to correlate with specific causes of action and other times appears to correlate to the elements of a cause of action. The court will discuss the “causes of action” Respondent addresses below.

i. Financial Elder Abuse of Decedent²

As to the claim of financial elder abuse of Decedent, Respondent argues that Petitioner lacks standing to bring a financial elder abuse claim on behalf of Decedent; that she fails to allege a taking, appropriation, or retention of a benefit by Respondent; that no ultimate facts regarding undue influence or active procurement by Respondent are alleged; and the Amended Petition pleads no damages suffered by Decedent.

Respondent first contends that Petitioner lacks standing or fails to establish that she has standing to bring this claim.

(1) Subject to paragraph (2) and subdivision (e), after the death of the elder or dependent adult, the right to commence or maintain an action shall pass to the personal representative of the decedent. If there is no personal representative, the right to commence or maintain an action shall pass to any of the following, if the requirements of Section 377.32 of the Code of Civil Procedure are met:

(A) An intestate heir whose interest is affected by the action.

(B) The decedent’s successor in interest, as defined in Section 377.11 of the Code of Civil Procedure.

(C) An interested person, as defined in Section 48 of the Probate Code, as limited in this subparagraph. As used in this subparagraph, “an interested person” does not include a creditor or a person who has a claim against the estate and who is not an heir or beneficiary of the decedent’s estate.

(2) If the personal representative refuses to commence or maintain an action or if the personal representative’s family or an affiliate, as those terms are defined in subdivision (c) of Section 1064 of the Probate Code, is alleged to have committed abuse of the elder or dependent adult, the persons described in subparagraphs (A), (B), and (C) of paragraph (1) shall have standing to commence or maintain an action for elder abuse. This paragraph does not require the court to resolve the merits of an elder abuse action for purposes of finding that a plaintiff who meets the qualifications of subparagraphs (A), (B), and (C) of paragraph (1) has standing to commence or maintain such an action.

² The Amended Petition also appears to contain an undue influence cause of action that may be potentially separate from the financial elder abuse of Decedent claim. (See Amended Petition, pp. 5:6-9:8.) It is not clear whether this is meant to be a separate cause of action or part of the financial elder abuse of Petitioner cause of action. (See Amended Petition, § 22 [alleging that undue influence is a form of financial abuse].) The court requests that any second amended petition Petitioner may file clearly label each cause of action as such.

(Welf. & Inst. Code, § 15657.3, subd. (d).)

Here, Respondent is the current personal representative who would ordinarily be the one tasked with bringing an elder abuse claim. But, because the claim is alleged against him, Welfare and Institutions Code section 15657, subdivision (d)(2) applies. The Amended Petition pleads that Petitioner is an interested person in that she is Decedent's surviving spouse and a beneficiary of the trust. (Amended Petition, ¶ 4.) Respondent argues that Petitioner does not plead that she complied with "the requirements of Section 377.32 of the Code of Civil Procedure[.]" (Welf. & Inst. Code, § 15657.3, subd. (d)(1).) Section 377.32 requires an affidavit containing certain specified information where one seeks to maintain a cause of action as a decedent's successor in interest. "Section 377.32, however, 'does not require that the affidavit be filed as a condition precedent to commencing or continuing the action.' [Citation.]" (*Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 614; accord *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 229.) Thus, failure to plead compliance with section 377.32 cannot render the Amended Petition subject to demurrer.

As to Respondent's argument that the cause of action fails to state in what manner the taking, appropriation of a benefit by Respondent occurred, "The [Elder Abuse] Act broadly defines financial abuse as occurring 'when a person or entity ... [¶] ... [t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder ... for a wrongful use or with intent to defraud, or both' ([Welf. & Inst. Code,] § 15610.30, subd. (a)(1), italics added) or 'by undue influence.' (§ 15610.30, subd. (a)(3).) Further, a person or entity that assists in the foregoing conduct is also liable for elder abuse. (§ 15610.30, subd. (a)(2).)" (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 478.) Welfare and Institutions Code section 15610.30, subdivision (c) provides, "For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult." A taking can be adequately alleged where it is pled that the right of an elder to dispose of their real property as they see fit is encumbered. (*Bounds v. Superior Court, supra*, 229 Cal.App.4th at p. 483.)

Petitioner contends that the Amended Petition adequately pleads the same with the following allegations: Respondent and Philemon Kang (1) took Decedent to banks and financial institutions despite his inability to speak, write, or communicate independently, and directed transactions in his name (Amended Petition, Page 3, Paragraph 12; Page 6, Paragraph 27; Page 7, Paragraph 28; Page 9, Paragraph 36); (2) implemented a fee-payment scheme in which they paid themselves from Decedent's accounts (Amended Petition, Page 4, Paragraph 13); (3) arranged the sale of Decedent's real property through a personal associate, with Phil benefiting from the proceeds (Amended Petition, Page 7, Paragraph 29); and (4) procured the execution of the 2022 Restatement that transferred beneficial interests away from Petitioner and toward Respondents (Amended Petition, Page 8, Paragraphs 32-33)." (Opposition, pp. 5:23-6:3.)

While the court agrees with Petitioner that the specifics of every transaction need not be pled, an elder abuse cause of action is statutory and must be pled with greater particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 (*Covenant Care*).) Thus, the failure to differentiate which actions were committed by Respondent and which by Philemon Kang renders the cause of action subject to demurrer. Thus, the allegation that

Philemon Kang caused the sale of Decedent's real property, (see Amended Petition, § 33), with no allegations that Respondent aided and abetted him is insufficient to plead elder abuse on the part of Respondent. Petitioner also points to the allegation that Respondents caused Decedent to change his estate plan to benefit Respondents and paid themselves "through a compensation scheme tied to Decedent's assets," (Amended Petition, ¶ 32), but that allegation is too general to adequately apprise Respondents of what actions they allegedly took or in what specific manner the taking occurred.

Further, the court agrees with Respondent that damages suffered by Decedent are inadequately pled. Notably, the allegation that Decedent changed his estate plan asserts that this was accomplished to the detriment of Petitioner herself, rather than Decedent. (See, e.g., Amended Petition, ¶ 32 ["Respondents also isolated Decedent from his wife and disregarded his longstanding commitments to her. Most critically, they initiated and procured changes to Decedent's estate plan that *eliminated Petitioner's rights and substituted arrangements that favored Respondents*, while simultaneously paying themselves through a self-devised compensation scheme tied to Decedent's assets."], italics added.)

The demurrer is SUSTAINED as to the cause of action for financial elder abuse of Decedent WITH 20 DAYS' LEAVE TO AMEND.

ii. Financial Elder Abuse of Petitioner

As to the claim of financial elder abuse of Petitioner, Respondent argues that it fails because Petitioner was not 65 years old at the relevant times, alleges no statutory taking of her property, relies on impermissible group pleading, and is barred to the extent it challenges restoration of the Dry Creek Property pursuant to a court-approved order.

As to the first contention, the Amended Petition does not plead Petitioner's age or date of birth. Respondent contends that Petitioner was born on August 27, 1958, based on the marriage license for her marriage to Decedent. Petitioner counters that some of the injuries she alleges happened after she turned 65. While that may be correct, Petitioner is required to plead the ultimate facts to establish entitlement to relief. To state a claim for financial elder abuse, a plaintiff must plead and prove the following: (1) the plaintiff was "elderly" within the meaning of the Elder Abuse Act (Welfare & Institutions Code § 15600, et seq.), i.e., 65 years of age or older; (2) the defendant took or retained the plaintiff's property with the intent to defraud the plaintiff, for a wrongful use, or by undue influence; (3) the plaintiff was harmed; and (4) the defendant's conduct was a substantial factor in causing in the plaintiff's harm. (See CACI No. 3100; Welf. & Inst. Code, § 15610.30.) Thus, Petitioner must plead that she was an elder within the meaning of the statute. As mentioned above, because a financial elder abuse cause of action is statutory, it must be pleaded with particularity. (*Covenant Care, supra*, 32 Cal.4th at p. 790.) Thus, merely stating that Petitioner was an elder is insufficient.

For the same reason, the court finds that the financial elder abuse cause of action relating to Petitioner is subject to demurrer due to the blurring of the allegations regarding actions taken by Respondent and those taken by Philemon Kang. However, the court rejects Respondent's argument that the Amended Petition fails to allege a statutory taking as to Petitioner. The Amended Petition alleges that Respondents' actions caused a deviation from Decedent's intended estate plan, to the detriment of Petitioner. (See Amended Petition, ¶¶ 32, 37.) Further, while Respondent argues that any rights Petitioner might have under the estate plan would only come into play after Decedent passed away, he cites no authority that a change

to an estate plan to the detriment of a beneficiary, caused by undue influence or elder abuse, cannot constitute financial elder abuse of that beneficiary as a matter of law.

Respondent also contends that any claim Petitioner may make regarding Decedent's residence (the "Dry Creek Property") is barred because Petitioner agreed to a settlement by which a deed transferring the Dry Creek Property to her was voided. A demurrer does not lie to a portion of a cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) Because this argument targets only a portion of a cause of action, it does not dispose of the entire cause of action, and therefore the demurrer cannot be sustained on this basis.

The demurrer is SUSTAINED as to the cause of action for elder abuse against Petitioner with 20 DAYS' LEAVE TO AMEND for the reasons discussed above.

iii. Intentional Interference with Expected Inheritance

Respondent contends that the intentional interference with expected inheritance ("IIEI") cause of action cannot lie because Petitioner has adequate remedies at probate. As explained in *Halperin v. Halperin* (2026) 118 Cal.App.5th 193, 199 (*Halperin*), "The tort of IIEI was first recognized by a California court in *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039 (*Beckwith*)." Under *Beckwith*, "a plaintiff cannot recover for IIEI if 'an adequate probate remedy exists.' " (*Halperin, supra*, 118 Cal.App.5th at p. 200, quoting *Beckwith, supra*, 205 Cal.App.4th at pp. 1056, 1058.) In *Halperin*, the Court of Appeal upheld the trial court's order sustaining a demurrer where the petitioner had standing to assert and did assert requests for relief in probate. (*Halperin, supra*, 118 Cal.App.5th at p. 201; see also, *Munn v. Briggs* (2010) 185 Cal.App.4th 578, 591 (*Munn*) [upholding order sustaining demurrer where petitioner had adequate remedy in probate].)

Here, Petitioner has standing in probate to challenge the 2022 restatement and she has done so. Petitioner argues that the availability of an adequate probate remedy turns on factual issues that cannot be resolved on a demurrer. She maintains that Respondent's defenses to her causes of action show that the demurrer should not be sustained. For example, she asserts that Respondent argues that her cause of action to invalidate the trust is barred by the statute of limitations, Probate Code section 16061.8, and by judicial estoppel. She maintains that, if such defenses were accepted, she would be foreclosed from recovery in probate.

Munn undercuts Petitioner's argument. In *Munn*, the Court of Appeal concluded that the tort of IIEI was unavailable because the petitioner could have but did not timely avail himself probate remedies. The court explained that the petitioner did not file an objection to the probate of a will before or at the hearing on the petition for probate, had failed to file a petition to revoke the will within 120 days of admission of the will as required by Probate Code section 8270, but instead filed a petition under the former safe harbor provisions for a determination that his proposed petition for IIEI would not constitute a will contest. (*Munn, supra*, 185 Cal.App.4th at p. 591.) The court rejected the petitioner's argument that the probate remedy was inadequate because the codicil he sought to challenge contained a no contest clause because to allow petitioners to use an IIEI cause of action to circumvent a no contest clause would violate the public policy behind no contest clauses as well as eliminate statutory will contests in cases involving no contest clauses. (*Id.* at p. 592.) Here, as Respondent argues, to allow Petitioner to bring an IIEI claim would allow her to circumvent the statute of limitations to bring a claim for invalidating the trust.

The demurrer is SUSTAINED as to the IIEI claim WITHOUT LEAVE TO AMEND.

iv. Buyout of Petitioner's Life Estate

The 2022 trust leaves Petitioner a life estate in the Dry Creek Property. In her Amended Petition, Petitioner seeks a buyout of her interest in the property. Respondent contends that this cause of action is subject to demurrer because the trustee must follow the terms of the trust. Petitioner contends that this cause of action requires consideration of factual and equitable concerns that cannot be adjudicated on demurrer. Because the court has authority to amend the trust provisions or otherwise grant equitable relief, the demurrer cannot be sustained on the ground that the trustee lacks authority to deviate from the terms of the trust. (See, e.g., Prob. Code, §§ 15409, 17200; *Schwan v. Permann* (2018) 28 Cal.App.5th 678, 697 [probate court has equitable power to modify trust to serve the intent and purpose of the trust].) The demurrer is OVERRULED as to the buyout of Petitioner's life estate cause of action.

v. Compensation for Caregiver Services

As to Petitioner's cause of action for compensation for caregiving services she allegedly performed for Decedent prior to his death, Respondent asserts that this cause of action must be raised in the estate case, 25PR199269, rather than the trust case, 23PR194562. Assuming without deciding that this argument falls within one of the statutory grounds for demurrer, (see § 430.10), the court rejects this argument. In the context of a creditor's claim against a trust, " 'Claim' means a demand for payment for any of the following, whether due, not due, accrued or not accrued, or contingent, and whether liquidated or unliquidated: . . . Liability of the deceased settlor, whether arising in contract, tort, or otherwise." (Prob. Code, § 19000, subd. (a).) "Upon the death of a settlor, the property of the deceased settlor that was subject to the power of revocation at the time of the settlor's death is subject to the claims of creditors of the deceased settlor's probate estate and to the expenses of administration of the probate estate to the extent that the deceased settlor's probate estate is inadequate to satisfy those claims and expenses." (Prob. Code, § 19001, subd. (a).) Respondent argues that Petitioner has failed to comply with the probate creditor claims process but he does not indicate how she has failed to comply. (See *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to "comb the record and the law for factual and legal support that a party has failed to identify or provide"].)

Finally, Respondent argues that the cause of action fails because Petitioner has failed to plead an agreement for payment for her services and failed to allege whether any contract was written or oral under section 430.10, subdivision (g). Section 430.10, subdivision (g) provides that a demurrer lies where, "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." This argument is well taken. The demurrer is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND to allege the theory upon which Petitioner seeks compensation for caregiving services.

vi. Distribution of Pay On Death Account

Respondent contends that the cause of action for distribution of the pay on death account may not be raised in the trust case because the pay on death account is not a trust asset. He asserts that the Amended Petition admits that the pay on death account is not a trust asset. (Amended Petition, ¶¶ 17 ["At the time of Decedent's death, an E*Trade account existed in Decedent's name listing Petitioner as the payable-on-death (POD) beneficiary."] 66 ["Because the account is not part of the Trust, there is no legal justification for Respondents' refusal to release these funds."].)

Petitioner points out that the pay on death account cause of action also alleges that Respondent violated his fiduciary duty as trustee by failing to distribute the funds. (Amended Petition, ¶ 66 [“Respondents have unlawfully, and without justification have instructed E*Trade to withhold distribution of the funds, which total at least \$909,841.46, to Petitioner. This constitutes a clear breach of their fiduciary duties to act in good faith and avoid self-dealing. (See *Hearst v. Ganzi* (2006) 145 Cal.App.4th 1195.)”].) Petitioner does not explain how the failure to distribute the pay on death account funds could constitute a breach of a trustee’s fiduciary duty or how Respondent has a duty to pay out the funds in his capacity as trustee if the account is not a trust asset.

Notably, the Amended Petition cites two cases in support of the proposition that “a trustee or fiduciary” is required to distribute the funds in pay on death account upon the depositor’s death. (Amended Petition, ¶ 65.) In the first case, *Araiza v. Younkin* (2010) 188 Cal.App.4th 1120,³ the Court of Appeal held that a settlor properly changed the beneficiary on her Totten trust account via the execution of a trust listing the same account as a trust asset and naming a different person as a beneficiary to receive that account on the settlor’s death.⁴ In the second case, the Court of Appeal concluded that there were triable issues of material fact as to whether a Totten trust account had been created. (*Estate of Fisher, supra*, 198 Cal.App.3d at p. 425.) Both cases mention the general rule that the funds in pay on death accounts belong to the listed beneficiary upon the death of the depositor. (See *Araiza v. Younkin, supra*, 188 Cal.App.4th at pp. 1124-1125; *Estate of Fisher, supra*, 198 Cal.App.3d at p. 424; Prob. Code, § 5302.) But, neither holds that the trustee of a trust that does not hold the account as an asset is required to distribute the funds in the account to the beneficiary named on the account.

What is missing from the Amended Petition is any allegation connecting Respondent’s actions in preventing Petitioner from receiving payment to his role as trustee. The court is unaware of any authority indicating that the trustee has a duty to distribute non-trust assets to beneficiaries or any authority indicating that failure to do so is a breach of fiduciary duty. In the absence of such pleaded facts or authority, the court agrees with Respondent that this claim is improperly raised in the trust case. Nonetheless, the court cannot find that Respondent’s alleged interference with the distribution does not constitute a breach of fiduciary duty as a matter of law if Respondent used his role as trustee or otherwise acted in his capacity as trustee to prevent the distribution. Accordingly, the court will sustain the demurrer with leave to amend.

The demurrer is SUSTAINED as to the pay on death account claim WITH 20 DAYS’ LEAVE TO AMEND.

³ The Amended Petition does not provide a pincite.

⁴ “The term Totten trust describes a bank account opened by a depositor in his own name as trustee for another person where the depositor reserves the power to withdraw the funds during his lifetime. If the depositor has not revoked the trust then, upon his death, any balance left in the account is payable to the beneficiary. [Citations.] The name derives from the case of *In re Totten* (1904) 179 N.Y. 112 in which the court stated the rule subsequently followed in most jurisdictions.” (*Estate of Fisher* (1988) 198 Cal.App.3d 418, 424.)

vii. Invalidation of Trust as Omitted Spouse

The Amended Petition asserts that the trust as amended is invalid and because the original trust did not provide for Petitioner, she seeks recognition as an omitted spouse pursuant to Probate Code section 21610.⁵ Respondent contends that the statute of limitations bars a claim to invalidate the trust and that the prior version of the petition indicated that Petitioner sought an extension of the time in which to file a claim for trust invalidation. The Amended Petition does not contain this allegation and Respondent maintains that the deletion of that allegations is an attempt to avoid the statute of limitations, which must be rejected under the sham pleading doctrine.

Probate Code section 16061.8 provides

A person upon whom the notification by the trustee is served pursuant to paragraph (1) of subdivision (a) of Section 16061.7, whether the notice is served on the person within or after the time period set forth in subdivision (f) of Section 16061.7, shall not bring an action to contest the trust more than 120 days from the date the notification by the trustee is served upon the person, or 60 days from the date on which a copy of the terms of the trust is delivered pursuant to Section 1215 to the person during that 120-day period, whichever is later.

In the original petition filed August 12, 2025 in docket 25PR200738, Petitioner alleged, “Petitioner has requested additional time to contest the trust past the 180 days allotted to contest the trust as granted by RYAN’s memorandum and notification by trustee to review and assess the administration of the Trust and intends to file a creditor’s claim for the unpaid personal services she rendered to Decedent during his lifetime.” (Original Petition, ¶ 19.)

“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the

⁵ That section provides

Except as provided in Section 21611, if a decedent fails to provide in a testamentary instrument for the decedent’s surviving spouse who married the decedent after the execution of all of the decedent’s testamentary instruments, the omitted spouse shall receive a share in the decedent’s estate, consisting of the following property in said estate:

- (a) The one-half of the community property that belongs to the decedent under Section 100.
- (b) The one-half of the quasi-community property that belongs to the decedent under Section 101.
- (c) A share of the separate property of the decedent equal in value to that which the spouse would have received if the decedent had died without having executed a testamentary instrument, but in no event is the share to be more than one-half the value of the separate property in the estate.

(Prob. Code, § 21610.)

defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]” (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.)

However, under the sham pleading doctrine, “admissions in an original complaint... remain within the court’s cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff’s case will not be accepted.” (*Lockton v. O’Rourke* (2010) 184 Cal.App.4th 1051, 1061.) The purpose of the doctrine is to “enable the courts to prevent an abuse of process. [Citation.]” (*Hanh v. Mirda* (2007) 147 Cal.App.4th 740, 751.) “[W]here a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings,” the court may examine the prior complaint to ascertain whether the amended pleading is merely a sham. (*Owen, supra*, 198 Cal.App.3d at p. 384.)

Because paragraph 19 of the original petition does not state the date the trustee’s notice or a copy of the trust were received by Petitioner, the court finds that even when paragraph 19 is considered, the court cannot determine that the trust invalidation claim is untimely from the face of the Amended Petition.

Respondent also argues that, during his lifetime, Decedent was the subject of a conservatorship in docket 22PR193873. In that case, Petitioner, Respondent, and the Public Guardian on behalf of Decedent entered into a stipulation and order involving Decedent’s estate plan. In that stipulation and order, the parties agreed to void an estate plan created for Decedent in December 2022 by the firm Wong & Associates and reinstate the 2022 version of the trust and other documents drafted in February 2022 by Decedent’s estate planning attorneys at Dean Jones, LLP. (Respondent’s Request for Judicial Notice, Ex. 1 [Stipulation and Order], pp. 2:21-5:9.) Petitioner is now seeking to invalidate the 2022 trust via this cause of action. Respondent contends that she is judicially estopped from doing so.

“The doctrine of judicial estoppel ... is invoked to prevent a party from changing its position over the course of judicial proceedings when such positional changes have an adverse impact on the judicial process. ... Judicial estoppel is ‘intended to protect against a litigant playing fast and loose with the courts. [Citation.]’” (*Filtzer v. Ernst* (2022) 79 Cal.App.5th 579, 588, internal quotation marks omitted.) The burden of establishing that judicial estoppel applies is on Respondent as the party invoking it. (*Ibid.*)

“The doctrine applies when (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” (*Blix Street Records, Inc. v. Cassidy* (2010) 191 Cal.App.4th 39, 47, internal citations and quotation marks omitted.) Judicial estoppel is an extraordinary remedy to be invoked only when a party’s inconsistent behavior will result in a miscarriage of justice. (*Ibid.*)

Respondent has not attempted to grapple with the above elements and the stipulation. The stipulation states, “the Trust . . . [is] reinstated and shall continue in full force and effect.” Thus, while recognizing that the February 2022 estate plan is in effect, the stipulation does not

specifically indicate that Petitioner acknowledges its validity. Though Petitioner's belief in the validity of the Trust could be inferred from the stipulation, given the extraordinariness of the remedy of judicial estoppel any ambiguity or doubt must be construed in Petitioner's favor. Because one cannot say that the stipulation is totally inconsistent with Petitioner's current claim of invalidity, judicial estoppel does not apply.

Finally, Respondent contends that Probate Code section 21611, subdivision (b) prevents Petitioner from seeking recognition as an omitted spouse because the 2022 version of the trust makes her a beneficiary. "The spouse shall not receive a share of the estate under Section 21610 if any of the following is established: . . . The decedent provided for the spouse by transfer outside of the estate passing by the decedent's testamentary instruments and the intention that the transfer be in lieu of a provision in said instruments is shown by statements of the decedent or from the amount of the transfer or by other evidence." (Prob. Code, § 21611, subd. (b).) The parties disagree over whether the bequest to Petitioner in the 2022 trust qualifies as "providing for" Petitioner because Petitioner did not receive an "equivalent" bequest under the terms of the trust. The court need not determine whether a bequest that is not equivalent to what an omitted spouse could receive under Probate Code section 21610 is sufficient to constitute "providing for" the omitted spouse because this cause of action seeks to invalidate the 2022 trust and then requests a finding that a prior version of the trust did not provide for Petitioner such that she is an omitted spouse. (See Amended Petition, ¶ 66 ["Petitioner respectfully requests that the Court find the Amendment invalid, and, because Petitioner was not a beneficiary of the original Trust (she was not married to Decedent) that she be recognized as an omitted spouse under Probate Code § 21610."].) Thus, this cause of action, by its own terms does not rely on the argument that the bequest in the 2022 trust is not equivalent to what Petitioner could have received as an omitted spouse. For the same reason, Respondent's argument that the 2022 trust makes Petitioner a beneficiary and therefore she is not an omitted spouse also fails.

The demurrer is OVERRULED as to the cause of action for invalidation of trust as omitted spouse.

C. Motion to Strike

Respondent's motion to strike seeks to strike the entirety of the Amended Petition on the ground that it is untimely. The motion also seeks to strike portions of the Amended Petition as will be discussed further below.

Respondent contends that the Amended Petition is untimely because it had to be filed within the time Petitioner had to oppose his prior demurrer and motion to strike. Section 472, subdivision (a) provides, in pertinent part, "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike."

Respondent's prior demurrer and motion to strike were set to be heard on February 4, 2026. But, when Petitioner filed her Amended Petition on January 29, 2026, the court found the demurrer and motion to strike moot. Respondent contends that the Amended Petition had to be filed by January 22, 2026, the date Petitioner's opposition was due. (See § 1005, subd. (b))

[opposition must be filed nine court days before hearing].) The court declines to strike the Amended Petition on this ground. (See § 436 [“The court may . . . strike”]; see also *Colden v. Broadway State Bank*, *supra*, 11 Cal.App.2d at p. 429 [motion to strike is addressed to the sound discretion of the court].) Notably, Respondent did not object to the court’s tentative ruling finding the prior demurrer and motion to strike moot and Respondent establishes no prejudice flowing from the court allowing the Amended Petition to proceed. The motion is DENIED to the extent it seeks an order striking the entirety of the Amended Petition.

The motion is DENIED AS MOOT to the extent it seeks to strike the IIEI cause of action as the court has sustained the demurrer to that cause of action without leave to amend.

Respondent repeats the arguments he made in the demurrer with respect to the causes of action for buyout of Petitioner’s life estate, caregiver compensation, and the transfer on death account. The court has rejected these arguments above.

The motion also targets the request in the Amended Petition for double damages under Probate Code section 859. (Amended Petition, ¶¶ 55-59, prayer for relief ¶ 7.) Respondent’s argument on this point is premised on the demurrer being sustained to Petitioner’s causes for financial elder abuse and IIEI causes of action and the demurrer has been sustained to all three causes of action with leave to amend. Petitioner contends that the Amended Petition also asserts that Respondent failed to account and breached his fiduciary duties but the Amended Petition contains no standalone cause of action for breach of fiduciary duty and Probate Code section 859 requires a bad faith taking of property, thus, failing to account standing alone is insufficient. The motion to strike is GRANTED as to the Probate Code section 859 allegations (Amended Petition, ¶¶ 55-59, prayer for relief ¶ 7) WITH 20 DAYS’ LEAVE TO AMEND.

Respondent also challenges Petitioner’s request for attorney fees pursuant to unspecified portions of the Probate Code and Welfare and Institutions Code. (See Amended Petition, prayer for relief ¶ 9.) Petitioner contends that the request is proper under Probate Code section 859. But, as discussed above the motion is granted as to the Probate Code section 859 allegations. Thus, the additional separate request for attorney fees on the same basis is also subject to the motion to strike. The motion to strike is GRANTED as to paragraph 9 of the prayer for relief WITH 20 DAYS’ LEAVE TO AMEND.

Finally, Respondent seeks to strike allegations regarding Petitioner’s entitlement to the Dry Creek Property. Nowhere in the notice of motion or supporting documents does Respondent explain where these allegations are located. (See Cal. Rules of Court, rule 3.1322(a) [“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.”].) Accordingly, the motion to strike is DENIED as to those allegations.

Kang’s Demurrer and Motion to Strike Amended Petition in Docket 23PR194562

A. Kang’s Request for Judicial Notice

Kang requests judicial notice, in connection with both the demurrer and the motion to strike, of (1) the Petition for Orders: 1. Fiduciary Financial Elder Abuse (Welfare & Institutions Code § 15600, et seq.); 2. Breach of Fiduciary Duty; 3. Conversion; 4. Constructive Trust; and 5. Undue Influence, filed by Respondent in docket 25PR199269 and

(2) Decedent's and Petitioner's marriage license and certificate. The request is GRANTED. (Evid. Code, § 452, subds. (c), (d).)

B. Demurrer

Kang frames the "causes of action in the Amended Petition somewhat differently from Respondent. He addresses an undue influence cause of action, two financial elder abuses causes of action (one alleging acts committed against Decedent and one against Petitioner), one for IIEI, an omitted spouse claim, and a claim for buyout of Petitioner's life estate.⁶

i. Undue Influence Cause of Action

At the outset, the court notes that it is not entirely clear if the Amended Petition is attempting to state a cause of action for undue influence or if the undue influence language is meant to be part of the financial elder abuse claims. (See Amended Petition, ¶ 22 [stating that undue influence is a form of financial elder abuse].) To the extent it is a cause of action, the undue influence claim alleges that Respondent and Kang used coercive tactics to control Decedent's finances and caused Decedent to change his estate plan so that it did not provide for Petitioner. (Amended Petition, ¶¶ 29-38.)

Kang asserts that in *Rice v. Clark* (2002) 28 Cal.4th 89, 97, the California Supreme Court held that undue influence is shown when "(1) the person alleged to have exerted undue influence had a confidential relationship with the testator; (2) the person actively participated in procuring the instrument's preparation or execution; and (3) the person would benefit unduly by the testamentary instrument." (Kang Demurrer MPA, p. 6:19-23.) He contends that he is not alleged to have been in any kind of fiduciary relationship with Decedent or Petitioner. Rather, he is merely accused of selling a life insurance policy to Decedent and that because he had no role in procuring the 2018 trust or the 2022 trust amendment and does not stand to gain from either the 2018 trust or the 2022 amendment, the demurrer should be sustained.

Kang's statement of the law is somewhat of a misstatement. In the portion of *Rice v. Clark* Kang cites, the court was discussing the *presumption* of undue influence: "Although a person challenging the testamentary instrument ordinarily bears the burden of proving undue influence ([Prob. Code,] § 8252), *this court and the Courts of Appeal have held that a presumption of undue influence, shifting the burden of proof, arises upon the challenger's showing that* (1) the person alleged to have exerted undue influence had a confidential relationship with the testator; (2) the person actively participated in procuring the instrument's preparation or execution; and (3) the person would benefit unduly by the testamentary instrument." (*Rice v. Clark, supra*, 28 Cal.4th at pp. 96-97, italics added.) It appears that Petitioner is attempting to rely on the presumption of undue influence. (See Amended Petition, ¶ 24.) To the extent she is intending to invoke the presumption, she must state the requisite facts to do so. Accordingly, the demurrer is SUSTAINED to the undue influence cause of action on the ground that Petitioner has not pleaded facts showing that a fiduciary relationship between Kang and Decedent or Kang and Petitioner, that Kang took action to procure the 2018

⁶ Kang also appears to group the buyout of life estate, compensation for caregiving services, and

distribution of E-Trade account claims into one accounting cause of action. (See Memorandum of Points and Authorities in Support of Respondent Philemon Hyunwok Kang's Demurrer to Amended Petition ("Kang Demurrer MPA"), p. 2, fn. 1.)

trust or 2022 amendment, or that Kang stands to benefit from those documents because the allegations are too conclusory to establish these elements.

Kang requests that the demurrer be sustained without leave to amend. But, “[i]f the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment. [Citations.]” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) Kang has not shown that the undue influence cause of action cannot be amended to state a valid claim. Accordingly, the demurrer is SUSTAINED to the undue influence cause of action WITH 20 DAYS’ LEAVE TO AMEND.

ii. Financial Elder Abuse Causes of Action

Kang raises similar arguments to Respondent Tanaka as to the financial elder abuse causes of action. Specifically, he contends that it cannot be determined what actions he took because of impermissible “group pleading” and that Petitioner has failed to adequately plead that she was an elder at the time of the alleged wrongful actions. These arguments are well-taken for the reasons discussed above in connection with Respondent’s demurrer. Kang’s demurrer is SUSTAINED as to the two financial elder abuse causes of action WITH 20 DAYS’ LEAVE TO AMEND.

iii. The IIEI Cause of Action

Kang repeats Respondent’s argument that the IIEI cause of action must fail where there is an adequate probate remedy. The court SUSTAINS the demurrer to the IIEI cause of action WITHOUT LEAVE TO AMEND on that ground. For this reason, the court need not address Kang’s remaining arguments as to this cause of action.

iv. The Omitted Spouse Cause of Action

Kang asserts that the omitted spouse cause of action fails because Petitioner was provided for outside of the trust and her assertion that an “equivalent” provision outside the of the trust is unnecessary. While Kang provides authority that an equivalent provision is not required, (see *Estate of Bridler* (1958) 165 Cal.App.2d 486, 488), he does not identify how Petitioner was provided for outside of the trust. He points to nowhere in the petition where Petitioner pleads that she received a gift outside of the trust nor does he request judicial notice of any item from which the court could conclude that she received such a gift. To the extent Kang is referring to the life estate, as discussed above, this cause of action seeks to invalidate the 2022 trust and then requests a finding that a prior version of the trust did not provide for Petitioner such that she is an omitted spouse. (See Amended Petition, ¶ 66 [“Petitioner respectfully requests that the Court find the Amendment invalid, and, because Petitioner was not a beneficiary of the original Trust (she was not married to Decedent) that she be recognized as an omitted spouse under Probate Code § 21610.”].) Thus, the omitted spouse cause of action, by its own terms does not rely on the argument that the bequest in the 2022 trust is not equivalent to what Petitioner could have received as an omitted spouse.

The court also rejects Kang’s argument that the stipulation bars Petitioner from raising this claim for the reasons discussed above in connection with Respondent’s demurrer.

Kang’s demurrer is OVERRULED as to the omitted spouse cause of action.

v. The Life Estate Buyout Claim

As to the life estate buyout claim, Kang contends that the trust does not provide for such a remedy, it only provides Petitioner with a life estate in the real property. The court rejects this argument for the same reasons expressed above in connection with Respondent's demurrer. The demurrer is **OVERRULED** as to the buyout of Petitioner's life estate cause of action.

vi. Statute of Limitations

Kang contends that Petitioner's claims are time-barred because a trust contest may only be filed within 120 days of the service of the notice under Probate Code section 16061.7 or within 60 days after receipt of the trust instrument, whichever is later. (Prob. Code, § 16061.8.) It is not clear to which cause(s) or action this argument is directed. The court rejects this argument for the same reasons discussed above in the context of Respondent's demurrer. The demurrer is **OVERRULED** to the extent it relies on the statute of limitations argument.

C. Motion to Strike

Kang asserts that the entire Amended Petitioner should be stricken because it was untimely filed because it was not filed until after the time to file an opposition to Kang's prior demurrer had passed. The court declines to strike the Amended Petition on this ground for the reasons discussed above in connection with Respondent's motion to strike.

Kang also moves to strike paragraphs 48 through 54 (the IIEI cause of action) and prayer for relief paragraph 4 because an IIEI claim is not cognizable when there is adequate relief in probate. The motion is **DENIED AS MOOT** as to these paragraphs because Kang's demurrer was sustained to the IIEI cause of action.

Finally, Kang moves to strike paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9, which he contends state a claim for claim for double damages and attorneys fees under Probate Code section 859, but he asserts they are lacking in factual support and are not legally cognizable. Kang's motion to strike paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9 is **GRANTED WITH 20 DAYS' LEAVE TO AMEND**.

Respondent Tanaka's Demurrer and Motion to Strike Objection in Docket 25PR199269

A. Respondent's Request for Judicial Notice

In support of the demurrer and motion to strike in docket 25PR199269, Respondent requests judicial notice of several of the same documents for which it was requested above in connection with the motions in docket 23PR194562. The court **GRANTS** the request for judicial notice in its entirety with the same caveat noted above.

B. Demurrer

Respondent⁷ demurs to paragraphs 15 through 41 of the Objection arguing that "to the extent [they are] construed as purported causes of action or claims for affirmative relief," they fail to state sufficient facts or are otherwise subject to demurrer on various grounds stated in section 430.10. He further demurs to the affirmative defenses stated in paragraphs 44 through

⁷ The court understands that, with respect to the motions filed in docket 25PR199269, Respondent is in the role of the petitioner and Petitioner is in the role of the respondent. However, the court will continue to refer to the parties as provided above.

47 and 49 through 53 as stating insufficient factual matter to meet the pleading standard for affirmative defenses.

Petitioner argues that a demurrer to an objection in probate is procedurally improper. She concedes that Probate Code section 1000, subdivision (a) provides that where there is no applicable probate rule, the rules of civil procedure apply. But, she contends that demurrers can only be used to target complaints, cross-complaints, and answers. She points to section 430.30, which provides:

- (a) When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading.
- (b) When any ground for objection to a complaint or cross-complaint does not appear on the face of the pleading, the objection may be taken by answer.
- (c) A party objecting to a complaint or cross-complaint may demur and answer at the same time.

Petitioner is correct that the statutes governing demurrers do not mention expressly probate objections. But, they also do not mention probate petitions, yet demurrers may be filed to challenge petitions in probate. (*Goebner v. Superior Court* (2025) 110 Cal.App.5th 1105, 1111.) Accordingly, in the absence of an authority indicating that demurrers do not apply to probate objections, the court will reach the merits of the demurrer.

Respondent contends that paragraphs 15 through 41 are subject to demurrer to the extent they can be construed as causes of action. Paragraphs 15 through 41 generally assert that Respondent committed financial elder abuse against Decedent and Petitioner and caused Decedent to change his estate plan. Although the court disagrees that paragraphs 15 through 41 cannot be read to constitute causes of action because the Objection does not seek any relief based on those paragraphs, if Petitioner is intending to assert a defense based on paragraphs 15 through 41, she must make that clear. Accordingly, the demurrer to paragraphs 15 through 41 of the Objection is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND.

Respondent next argues that the affirmative defenses in paragraphs 44 through 47 and 49 through 53 state insufficient factual matter to meet the pleading standard for affirmative defenses. The affirmative defenses raised in those paragraphs include (1) the first affirmative defense of failure to state a claim, (2) the second affirmative defense of unclean hands, (3) the third affirmative defense, entitled "Consent and Authorization[.]" (4) the fourth affirmative defense, entitled "Marital and Community Property[.]" (5) the sixth affirmative defense of unjust enrichment, (6) the seventh affirmative defense entitled "Waiver and Acquiescence[.]" (7) the eighth affirmative defense of estoppel, (8) the ninth affirmative defense entitled "Lack of Reasonableness[.]" and (9) a second affirmative defense labelled as the ninth affirmative defense entitled "Against Public Policy[.]"

"A demurrer to an answer may be taken to the whole answer or to any one or more of the several defenses set up in the answer." (§ 430.50, subd. (b).) "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense; (b) The answer is uncertain. As used in this subdivision, 'uncertain'

includes ambiguous and unintelligible; and (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.” (§ 430.20.)

“The answer to a complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense.” (§ 431.30, subd. (b).) “Such ‘new matter’ is also known as ‘an affirmative defense.’ [Citation.]” (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 812.) “The defenses shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (§ 431.30, subd. (g).)

The court notes that it has been stated that “[a]ffirmative defenses must not be pled as ‘terse legal conclusions,’ but rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’ ” [Citation.]” (*Quantification Settlement Agreement Cases, supra*, 201 Cal.App.4th 758, 812-813, quoting *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.)

“However, ‘[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.’ [Citations.] The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240 (*Harris*).) In *Harris*, the California Supreme Court held that the following language in an answer was sufficient to notify the defendant of the allegations against it: “ ‘[a]ny alleged adverse employment actions of which plaintiff complains ... were not based on plaintiff’s gender and/or sex, pregnancy or any other alleged discriminatory practice, but instead were based on one or more legitimate nondiscriminatory reasons. Nor were any of the employment actions of defendant taken under pretext.’ ”

Here, the challenged affirmative defense allegations are similar. For example, the third affirmative defense alleges, “As a separate and distinct affirmative defense to the Petition and each cause of action therein, Respondent alleges that any transactions or conduct alleged occurred, if at all, with Decedent’s knowledge, consent, and authorization during his lifetime. Conduct undertaken with consent cannot, as a matter of law, constitute wrongful use, undue influence, or financial elder abuse.” Taking into account the allegations raised in the petition itself and the factual matter contained in paragraphs 15 through 41 of the Objection, this is sufficient to put Respondent on notice as to Petitioner’s affirmative defense.

The demurrer to paragraphs 44 through 47 and 49 through 53 of the Objection is **OVERRULED**.

The demurrer is **SUSTAINED** as to paragraphs 15 through 41 of the Objection **WITH 20 DAYS’ LEAVE TO AMEND** and **OVERRULED** as to paragraphs 44 through 47 and 49 through 53 of the Objection.

C. Motion to Strike

Respondent moves to strike portions of Petitioner’s Objection. First, Respondent seeks to strike paragraphs 15 through 41 on the ground that they are improperly seeking affirmative relief in an objection. (§ 431.30, subd. (c) [“Affirmative relief may not be claimed in the

answer.”).) This portion of the motion to strike is MOOT as the court has sustained the demurrer to those same paragraphs of the Objection.

Next, Respondent seeks to strike “[a]ny headings or subheadings introducing, incorporating, or relying upon the allegations in ¶¶ 15-41 (including references to financial elder abuse or IIEI asserted as affirmative claims)[,]” and “[a]ny request for affirmative relief (including damages or tort-type remedies) to the extent premised on or derived from ¶¶ 15-41[.]” (Notice of Motion, p. 2:1-5.) To the extent this argument is not addressed by the ruling on the demurrer, it is rejected because Respondent has not complied with Rules of Court, rule 3.1322(a), which provides, in pertinent part, “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” Respondent must adequately identify the portions of the Objection he seeks to strike, rather than leaving it to the court to determine to what extent the allegations might be derived from other allegations.

Respondent also moves to strike “[t]he ‘Respondent objects...’ language and other argumentative, demurrer-style legal argument inserted in lieu of admissions/denials in Wang’s paragraph-by-paragraph responses, including those identified in the Memorandum of Points and Authorities (e.g., responses to the petition ¶¶ 20, 21, 75, 79, 80, 84, 95, 103, 110, 115, and 118), and including any embedded assertions of estoppel, statute of limitations, and laches not separately stated as affirmative defenses and not pleaded with ultimate facts as ‘new matter.’ CCP §§ 431.30(b)-(d), (f), 436(a)-(b).” (Notice of Motion, p. 2:6-12.) Within the body of the motion, Respondent indicates that this objection language appears at paragraphs “20 (Objection, p. 12:22-26), 21 (Objection, p. 12:28-13:2), 75 (Objection, p. 15:19-26), 79 (Objection, p. 17:3-18:2), 80 (Objection, p. 18:12-20), 84 (Objection, p. 18:25-19:25), 95 (Objection, p. 20:16-21:16), 103 (Objection, p. 22:8-16), 110 (Objection, p. 23:2-10), 115 (Objection, p. 23:19-24:19), and 118 (Objection, p. 25:8-26:2).” (Memorandum of Points and Authorities, p. 6:8-11.)

Here, the Objection includes a recitation of whether Petitioner admits or denies the allegations in the petition, paragraph by paragraph. (See § 431.30, subd. (f) [“The denials of the allegations controverted may be stated by reference to specific paragraphs or parts of the complaint; or by express admission of certain allegations of the complaint with a general denial of all of the allegations not so admitted; or by denial of certain allegations upon information and belief, or for lack of sufficient information or belief, with a general denial of all allegations not so denied or expressly admitted.”].) However, in addition to simply admitting or denying the allegations, portions of the Objection state various “objections” to the allegations in the petition as well. For example, as to paragraph 75 of the petition, the Objection states, among other things, “Respondent denies the allegations in Paragraph 75 of Petitioner’s Petition. Respondent objects to this paragraph on the grounds that it is immaterial, irrelevant, conclusory, and fails to state facts sufficient to constitute a cause of action. Respondent further objects that the allegations are legally defective to the extent they are premised on a ‘purported’ marriage or similar formulation, where Petitioner has already admitted in paragraphs 19-21 of the Petition that the marriage between Respondent and Decedent was valid as certified by a marriage certificate in Santa Clara County. Having admitted the existence of a valid marriage, Petitioner is estopped from advancing internally inconsistent allegations predicated on the absence, defect, or uncertainty of marital status.” (Objection, p. 15:18-26.)

Because Respondent provides no authority explicitly indicating that such objections are improper within a probate objection or answer, the court declines to strike these allegations. (See § 436 [“The court may . . . strike”]; see also *Colden v. Broadway State Bank*, *supra*, 11 Cal.App.2d at p. 429 [motion to strike is addressed to the sound discretion of the court].) Notably, some courts have noted, without discussion, that answers have stated defenses of failure to state a claim. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1150; *Fireman’s Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1141.) Thus, it appears that pleading such matter in answers is somewhat common.

Within the context of the discussion regarding the “objects” language, Respondent also states, “Tanaka also seeks to strike any embedded assertions of estoppel, statute of limitations, or laches within those responses to the extent they are not separately stated as affirmative defenses and not pleaded with ultimate facts as ‘new matter.’ CCP §§ 431.30(b)-(d), (f), 436(a)-(b).” Again, Respondent is required to identify the exact portions of the Objection he is seeking to strike. (Cal. Rules of Court, rule 3.1322(a); *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [stating that the trial court is not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Although not mentioned in the notice of motion specifically, Respondent further seeks to strike mention of the name “Phil” in the Objection. The Objection states initially, “Upon information and belief Petitioner assumed the role of trustee on April 18, 2023. Concerns have arisen regarding the involvement of Petitioner and Phil Kang (‘Phil’) in the management of Decedent’s affairs both before and after his death on November 25, 2024.” (Objection, ¶ 8.) Thereafter, it goes on to mention actions taken by Phil throughout the Objection. The court declines to strike these references as they provide background regarding Petitioner’s version of the events.

The motion to strike the Objection is DENIED in its entirety.

CONCLUSION

Respondent’s demurrer in docket 23PR194562 is SUSTAINED IN PART AND OVERRULED IN PART. The demurrer is SUSTAINED as to the two financial elder abuse causes of action, the cause of action for caregiver services, and the pay on death account cause of action WITH 20 DAYS’ LEAVE TO AMEND. The demurrer is SUSTAINED as to the IIEI cause of action WITHOUT LEAVE TO AMEND. The demurrer is OVERRULED as to all other causes of action. The court requests that any second amended petition Petitioner may file clearly label the causes of action as such.

Respondent’s motion to strike in docket 23PR194562 is GRANTED IN PART AND DENIED IN PART. The motion to strike is GRANTED as to the Probate Code section 859 allegations and paragraphs 7 and 9 of the prayer for relief WITH 20 DAYS’ LEAVE TO AMEND. The motion to strike is DENIED in all other respects.

Kang’s demurrer in docket 23PR194562 is OVERRULED as to the omitted spouse cause of action and to the extent it relies on a statute of limitations argument. It is SUSTAINED WITHOUT LEAVE TO AMEND as to the IIEI cause of action. Kang’s

demurrer is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND as to the undue influence and financial elder abuse causes of action.

Kang's motion to strike in docket 23PR194562 is GRANTED WITH 20 DAYS' LEAVE TO AMEND paragraphs 55 to 59 and prayer for relief paragraphs 7 and 9. It is DENIED in all other responses.

Respondent's demurrer in docket 25PR199269 is SUSTAINED as to paragraphs 15 through 41 with 20 DAYS' LEAVE TO AMEND and otherwise OVERRULED. The motion to strike in docket 25PR199269 is DENIED in its entirety.